NewsBank inc.

California bill would make wildfire looting a felony with prison time

February 12, 2025 | Santa Monica Daily Press (CA)
Author: Daily Press Editor; MATTHEW HALL | Section: News | 548 Words
Page: 2
OpenURL Link

California legislators came together on Monday to announce bipartisan legislation to strengthen penalties for looting and impersonating emergency personnel during wildfires and other natural disasters.

The push for harsher penalties comes as officials have promised to protect victims of the recent Eaton and Palisades fires from all manner of criminal activities. While the rhetoric has been strong, officials said existing laws are simply too weak to provide enough of a deterrent. Assembly Bill 469, introduced by Assemblymembers Jesse Gabriel (D-Encino), Jacqui Irwin (D-Thousand Oaks), and Blanca Pacheco (D-Downey), would make looting a felony offense punishable by state prison time and close existing legal loopholes that have hampered prosecution of crimes in evacuation zones.

“Individuals who put our firefighters at risk and prey on communities when they are at their most vulnerable must be held accountable,” Gabriel said at a press conference announcing the legislation. “Looters particularly those who impersonate emergency personnel create chaos and confusion, endanger residents and first responders, and undermine public trust in evacuation orders.”

The legislation comes in response to criminal activity during the recent Palisades and Eaton fires, where law enforcement arrested dozens of suspected looters. In one notable case, two individuals from Oregon were arrested for allegedly impersonating firefighters in the Palisades Fire evacuation zone by driving a decommissioned fire truck into the area.

Los Angeles County District Attorney Nathan Hochman, who supports the legislation, said current looting laws are inadequate. While prosecutors can charge first-degree burglary carrying state prison time, the existing looting statute only provides for misdemeanor charges with maximum one-year county jail sentences.

He said the proposed changes close loopholes.

The bill would allow enhanced felony charges for looting and impersonating emergency personnel, including firefighters, police officers, and National Guard members during states of emergency. Protections would extend beyond the immediate disaster through the recovery and rebuilding period.

Ventura County District Attorney Eric Nasarenko cited three cases from previous wildfires that highlighted gaps in current law. In one instance during the 2017 Thomas Fire, thieves targeted evacuated families’ vehicles in Oxnard, but prosecutors couldn’t charge them under looting statutes because the vehicles were unlocked.

“We need to stop when theft occurs in the disaster zone in the state of emergency,” Nasarenko said. “It needs to be charged appropriately, fairly, and it needs to represent the conduct of the crime.”

Los Angeles County Sheriff Robert Luna emphasized that fear of looting often makes residents reluctant to follow crucial evacuation orders.

“A lot of the heroic stories that occurred within law enforcement in these fire zones were going back to rescue people whose lives were in peril because they did not evacuate,” Luna said. “I want people to feel confident to be able to leave their homes.”

The legislation has garnered support from the California Professional Firefighters, California District Attorneys

Association, and California Police Chiefs Association. Supporters hope to fast-track the bill through the legislature given ongoing concerns about mudslides and future disasters.

“When disaster strikes, no one should have to choose between following evacuation orders and protecting their property,” said Assemblymember Pacheco. “This bill sends a clear message that we will not tolerate Californians being criminally targeted during their most vulnerable moments.”

editor@smdp.com

Copyright, 2025, Santa Monica Daily Press. All Rights Reserved.

- **Citation (apa Style)**
  Press Editor, D. (2025, February 12). California bill would make wildfire looting a felony with prison time*Santa Monica Daily Press (CA)*, p. 2. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19EBAFFDF996A530.